

The U.P. Electricity (Regulation of Supply, Distribution, Consumption and Use) Order, 1977

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State of Uttar Pradesh - Act

The U.P. Electricity (Regulation of Supply, Distribution, Consumption and Use) Order, 1977

UTTAR PRADESH

India

The U.P. Electricity (Regulation of Supply, Distribution, Consumption and Use) Order, 1977

Rule THE-U-P-ELECTRICITY-REGULATION-OF-SUPPLY-DISTRIBUTION-CONSUMPTION-AND-USE-ORDER-1977 of 1977

Published on 19 September 1977

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The U.P. Electricity (Regulation of Supply, Distribution, Consumption and Use) Order, 1977

Published vide Notification No. 5009-P-3-77/23-216-77, dated 19.9.1977

Whereas, the State Government is of opinion that it is necessary and expedient so to do for maintaining the supply and securing the equitable distribution of electrical energy, to provide for regulating the supply, distribution, consumption and use thereof;

Now, therefore, in exercise of the powers conferred by Section 22-B of the Indian Electricity Act, 1910 (Act No. 9 of 1910), the Governor is pleased to make the following Order :

1.

Short title, extent and commencement.

- (i) This Order may be called the Uttar Pradesh Electricity (Regulation of Supply, Distribution, Consumption and Use) Order, 1977.

(ii)

It shall extend to the whole of Uttar Pradesh.

(iii)

It shall come into force at once.

2.

Definitions.

- In this Order unless the context otherwise requires-

(a)

"Factory" means a factory as defined in the Factories Act, 1948, but does not include a factory in which on manufacturing process is being or is ordinarily carried on with the aid of power;

(b)

The expressions "Shop" and "Commercial establishments" have respectively the meaning assigned to them in the Uttar Pradesh Dookan Aur Vanijya Adhistan Adhiniyam, 1962.

3.

Staggering of holidays of factories.

- The non-continuous process industries other than atta chakkis, cold storages, Ice Factories, Petrol Pumps, Automobile service and air-filling stations situated in districts specified in Schedule "A" to this Order shall observe the day specified in the said Schedule against it as the weekly holiday.

4.

Hours of business and close days of shops and commercial establishments.

(1)

All shops and commercial establishments in districts headquarters, KAVAI Towns and in towns having a population of more than 30,000 as specified in Schedule "B" to this Order shall observe the following hours of business, namely :

"From 9.00 a.m. to 8.00 p.m. on all days of the week other than the closed day."

(2)

Any atta chakkis or automobile service and air-filling station observing immediately before the commencement of this Order Sunday as the closed day shall, observe Sunday or instead of Sunday, such other day of the week as may be specified by the District Magistrate as the closed day.

5.

Powers of entry, search, etc.

- The powers of entry into, search and inspection of premises and places for the purposes of enforcement of this Order, shall be exercised

(a)

in relation to factories, by the inspectors appointed under the Factories Act, 1948, and the provisions of Sections 52 and 53 of that Act to the extent they are not inconsistent with the provisions of this Order, shall mutatis mutandis apply, in relation to weekly holidays provided by this Order as they apply in relation to weekly holidays referred to in the said Section 52;

(b)

in relation to shops and commercial establishments by the inspectors appointed under the Uttar Pradesh Dookan Aur Vanijya Adhistan Adhiniyam, 1962, and the provisions of Sections 5, 8 and 9 of that Adhiniyam, to the extent they are not inconsistent with the provisions of this Order, shall mutatis mutandis apply in relation to hours of business and closed days provided by this Order as they apply in relation to hours of business and closed days provided by that Adhiniyam.

6.

Compulsory cut in consumption of energy and demand.

(a)

(i)

In respect of electrical energy consumed by all large and heavy power industrial consumers receiving power at 33KV

and above, excepting fertilizers, from the U.P. State Electricity Board a cut of 50 per cent in their monthly consumption of electricity both in respect of energy and demand shall be exercised :

Provided that where any such industrial consumer has his own source of generation of energy which alone enables him to obtain 50 per cent, or more of his total consumption, then a cut of 100 per cent, in the energy supplied by the Uttar Pradesh State Electricity Board shall be exercised.

(ii)

All are furnaces, induction furnaces, Rolling and Re-Rolling Mills receiving power at 33KV or below from the Uttar Pradesh State Electricity Board shall use energy for 12 hours only every day, from 8.30 p.m. to 8.30 a.m. next day for the duration of this Order.

(iii)

All other continuous process industrial power consumers (listed in Annexure 2), as well as textile mills receiving power at 33 KV and below from Uttar Pradesh State Electricity Board, excluding oxygen and medicines for medical purposes shall observe a block closure of 10/11 days in a month, such industries shall be divided into 3 groups and as per Schedule "C" to this Order and shall be required to close their process for 10 days followed by working period of 20/21 days into rotation so, however, light and fan consumption to the limit of 5 per cent, of the contracted load shall be allowed in the period of block closure of such industries except that in relation to such industries, where block closure is technically not feasible due to the process involved they shall be subject to a power cut of 33 per cent, in their monthly consumption both in energy as well as in demand after obtaining express order in this behalf from the Uttar Pradesh State Electricity Board :

Provided that where any such industrial consumer has his own source of generation of energy then during the period he is supplied energy by the Uttar Pradesh State Electricity Board in accordance with Schedule "C" as above he shall observe a power cut to the extent of the installed capacity of such source of generation.

(iv)

No consumer including Government owned offices and establishments shall display or cause to display any decorative or ornamental or advertising lights, neon signs on any shop or commercial establishments or factory except on their one board during the normal hours of business.

(v)

All consumers using air-conditioning or humidification plants in offices, hotels, commercial and private establishments shall observe 25 per cent cut in their monthly energy consumption.

(b)

For purposes of working out the monthly consumption in kilowatt hours the average of 3 highest consecutive monthly consumption for the calendar year 1976 shall be taken into account. All consumers shall work out the average themselves on the basis of the electrical energy rendered to them.

(c)

For purpose of working out admissible maximum demand during the month the average of highest 3 consecutive maximum demand registered during calendar year 1976 shall be considered :

Provided firstly -

That if any consumer is found at any point of time to have failed to exercise the aforesaid cut to the prescribed extent above the establishment shall be liable to be summarily disconnected under orders of any of the officers referred to in Clause 9 appearing hereafter for such number of days as are arrived at by dividing the excess number of kilowatt hours actually drawn with the figures of daily permissible kilowatt hours based on the aforesaid limit and in addition for every excess demand created over and above aforesaid limit penalty at the rate of rupees 50 per KVA in addition to the governing rates shall be charged extra :

Provided secondly -

(i)

That in the case of a factory or commercial establishment engaged in the production or manufacture of goods requiring continuous process the consumer shall have the right to adjust the excess consumption in the monthly billing period next day following, and

(ii)

That in other cases where the excess consumption is not more than 10 per cent the consumer shall have the right to adjust this excess in the billing period next following monthly or two monthly, as the case may be.

(d)

For working out the average monthly consumption in kilowatt hours the load factor in respect of new connection shall be assessed having regard to the nature of the industry and the consumption in relation to the contract demand shall be worked out on the basis of such assessed load factor. It shall then be reduced by 50 per cent, to prescribe the ceiling of consumption each month in relation to the particular consumer. The assessment of load factor shall be binding on the consumer. In respect of extensions of the load of existing connection the actual load factor worked out on the basis of the highest average monthly consumption of three consecutive months during the period of January 1, 1976 to December 31, 1976 shall be taken into account on the basis of the load factor so arrived at the consumption in respect of additional contract demand shall be determined and then ceiling of consumption for each month for the consumer in regard to the additional load:

Provided that shortfall in any month in consumption below the prescribed ceiling shall not be allowed to be carried forward to subsequent months.

7.

Exemptions.

- The cut referred to in clause 6 shall not apply to the electrical connections of hospitals, waterworks, sewage pumping works, tube-wells and pumping sets and used for irrigation of agricultural fields, State Lift Irrigation Schemes and State tube-wells, State pumped canals, railway traction. Defence and Military installations, newspaper printing presses, and Government presses, milk chilling and processing centre, fruit preservation industries, cold storages, fertilizers manufacturing establishments, All-India Radio Stations, Aerodromes, Central and State Government Offices.

8.

Restrictions on using electrical energy during certain hours.

(a)

Any non-continuous process industry other than Petrol Pump. Automobile services and air-filling station receiving supply from Uttar Pradesh State Electricity Board, shall on any day not use electrical energy from 18.00 to 22.00 hours.

(b)

All Shops and Commercial establishments shall observe the hours of business from 9 a.m. to 8 p.m. on all days of the week other than their closed day.

(c)

All the rural line feeders district-wise shall get supply in two groups as in Annexure I to this Order in accordance with the electricity availability Schedule issued by the Uttar Pradesh State Electricity Board from time to time.

9.

Power of disconnection without notice.

- Without prejudice to the provisions contained in Section 42 of the Indian Electricity Act, 1910, all Chief Zonal Engineers, Superintending Engineers. Executive Engineers and Assistant Engineers of U.P. State Electricity Board, Chief Electrical Inspector, Deputy Electrical Inspector and Assistant Electrical Inspector to the State Government and the authorised representatives of the holders of sanction under Section 28 (1) of the Indian Electricity Act, 1910 (9 of 1910), shall be deemed to be authorised to disconnect the supply summarily without notice in relation to such installations as are found upon inspection made by them personally or otherwise to have contravened this Order. The supply shall remain disconnected for such period not exceeding the period specified below for each connection, as the officer ordering the disconnection deems fit :

(a)

Contravention first in point of time - Seven days.

(b)

Contravention second in point of time - Fifteen days.

(c)

Contravention beyond the Second - Thirty days.

10.

Power to exempt.

- The State Government may, in public interest exempt any consumer from the operation of any of the provisions of this Order to such extent and for such period as it thinks fit.

11.

Direction to Board.

- The Uttar Pradesh State Electricity Board shall not apply, except with the permission of the State Government, with the provisions of any contract agreement or requisition for the supply (other than the resumption of a supply) or an increase in the supply to energy to any person, where such compliance would be inconsistent with the provisions of this Order.

"A"

Item No.

Day of weekly holiday

Districts

1

2

3

1.

Monday

1.

Farrukhabad

2.

Gorakhpur

3.

Jhansi

4.

Badaun

5.

Basti

6.

Etah

7.

Hardoi

8.

Fatehpur

9.

Bara Banki

10.

Lalitpur

2.

Tuesday

1.

Azamgarh

2.

Bareilly

3.

Bijnor

4.

Bulandshahr

5.

Dehra Dun

6.

Etawah

7.

Lucknow

8.

Jalaun

9.
Ghazipur
10.
Sultanpur
3.
Wednesday
1.
Allahabad
2.
Agra
3.
Aligarh
4.
Mirzapur
5.
Nainital
6.
Rae Bareli
7.
Banda
8.
Jaunpur
9.
Chamoli
10.
Tehri Garhwal
11.
Uttarkashi
4.
Thursday
1.
Moradabad
2.
Mathura
3.
Shahjahanpur
4.
Rampur
5.
Sitapur
6.
Faizabad
7.
Gonda
8.
Bahraich
9.
Kheri
5.
Friday
- 1.

Muzaffarnagar

2.

Saharanpur

3.

Unnao

4.

Varanasi

5.

Pilibhit

6.

Pratapgarh

7.

Almora

8.

Garhwal

6.

Saturday

1.

Meerut

2.

Mainpuri

3.

Hamirpur

4.

Ballia

5.

Deoria

6.

Ghaziabad

7.

Pithoragarh

7.

Sunday

1.

Kanpur (City)

2.

Kanpur (Dehat)

"B"

List of towns having population more than 30,000 as per census, 1971

1. Najibabad

2. Nagina

3. Hardwar

4. Chandausi

5. Roorkee

6. Deoband

7. Shamli

8. Kairana

9. Hapur

10. Modinagar

11. Baraut

12.

Khurja

13.

Sikandrabad

14.

Hathras

15.

Sambal

16.

Amroha

17.

Ghaziabad

18.

Firozabad

19.

Kasganj

20.

Shikohabad

21.

Lalitpur

22.

Balrampur

23.

Nawabganj (Bara Banki)

24.

Tanda (Faizabad)

25.

Shahabad (Hardoi)

26.

Mau (Azamgarh)

27.

Kannauj and Sarai Meera (Farrukhabad)

28.

Haldwani, and

29.

Kashipur (Naini Tal).

"C"

Segregation of Industries in Block

Particulars of Industries

Block

Period of closure of Industries

1

2

3

Industries engaged

in the manufacture of :

Sulphuric Acid (Contact process), Caustic Soda,

Fruit Preservation, Aluminium refining and manufacturing,

Synthetic fibre, Man-made fibre, Rayon, Synthetic Rubber,

Vanaspatis involving Hydrogenation process not applicable to

refined oils), Drug manufacturing industries having fermentation

process and having contracted load more than 1 MVA.

I

1st to 10th of each month inclusive of these dates.

Industries engaged

in the processing of :

Solvent extraction, Tyres and Tubes of rubber,
Soda Ash, Acetylene and Oxygen, Chemicals, Paper straw board,
Pulp Card Board, Textiles Mills.

II

11th to 20th of each month and inclusive of these dates.

Industries engaged

in the process of :

Glass, Galvanising, Heat treatment, Induction
heating running on continuous basis, Camphor, Cement,
Distilleries and Breweries, Resin Distillation, Rubber
emulsifier and Sugar manufacture using vacuum pan.

III

21st to the last day of the month.

Annexure 1

Group "A"

It consists of the following districts :

1. Aligarh, 2. Azamgarh, 3. Agra, 4. Allahabad, 5. Almora, 6. Banda, 7. Bijnor, 8. Bareilly, 9. Bara Banki, 10. Dehra Dun, 11. Ballia, 12. Badaun, 13. Bahraich, 14. Bulandshahr, 15. Chamoli, 16. Etawah, 17. Etah, 18. Farrukhabad, 19. Faizabad, 20. Fatehpur, 21. Gonda, 22. Gorakhpur, 23. Ghazipur, 24. Ghaziabad, 25. Hardoi, 26. Hamirpur, 27. Sitapur.

Group "B"

It consists of the following districts :

1. Basti, 2. Deoria, 3. Jalaun, 4. Jhansi, 5. Jaunpur, 6. Kanpur (City) and Kanpur (Dehat), 7. Lalitpur, 8. Kheri, 9. Lucknow, 10. Moradabad, 11. Mirzapur, 12. Mathura, 13. Mainpuri, 14. Meerut, 15. Muzaffarnagar, 16. Naini Tal, 17. Pilibhit, 18. Pratapgarh, 19. Pauri Garhwal, 20. Pithoragarh, 21. Rae Bareli, 22. Rampur, 23. Saharanpur, 24. Shahjahanpur, 25. Sultanpur, 26. Tehri-Garhwal, 27. Unnao, 28. Uttarkashi, 29. Varanasi.

Annexure 2

List of continuous Industries

1. Synthetic fibre, man-made fibre rayon.
2. Tyres and Tubes of rubber.
3. Synthetic rubber.
4. Chemicals.
5. Paper straw board, Pulp, Card Board.
6. Glass.
7. Acetylene and Oxygen.
8. Solvent extraction plant.
9. Galvanising, heat treatment, induction heating running on continuous basis.
10. Aluminium refining and manufacturing.
11. Camphor.
12. Cement.
13. Sulphuric acid with contact process.
14. Caustic Soda.
15. Soda Ash.
16. Oxygen for medical purposes.
17. Distilleries and breweries.
18. Vanaspati involving Hydrogenation process (not applicable to refined oils).
19. Chemical fertilizers.
20. Drug manufacturing industries having fermentation process and having contracted load more than 1 MVA.

21. Fruit Preservation.
22. Resin distillation.
23. Rubber emulsifier.
24. Milk chilling centres.

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